

MUTUAL CONFIDENTIALITY AGREEMENT

This confidentiality agreement (the “**Agreement**”) is dated March 9, 2026 by and between:

SwiftX DLT Pay LTD. is incorporated under the Alberta Business Corporations Act (ABCA) with a company number 732629225, whose registered office is 753 Kettles St, Pincher Creek, Alberta, T0K 1W0, Canada. (hereinafter referred to as hereinafter “**SwiftX**”),

Mal Digital Ltd, a private company limited by shares incorporated under the laws of the Abu Dhabi Global Market and having its office at Floor 21, Sky Tower, Shams Abu Dhabi, Al Reem Island, Abu Dhabi, UAE (hereinafter referred to as hereinafter “**Mal**”), which expression shall mean and include, unless repugnant to the context, its successors and permitted assigns).

SwiftX and Mal shall be referred to individually as a “Party” and collectively as the “Parties”.

BACKGROUND

- A. SwiftX and Mal are in discussions about the Proposed Business Relationship (as defined below), which will involve the disclosure of Confidential Information (as defined below) between the Parties.
- B. Each Party wishes to ensure that any Confidential Information disclosed to the other Party in connection with the Proposed Business Relationship remains confidential and is not used by the receiving Party or any member of its Group (as defined below) for any purpose other than the Permitted Purpose (as defined below).
- C. The Parties have agreed to comply with this Agreement in connection with the use and disclosure of the Confidential Information.

NOW THEREFORE, in consideration of the premises and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

The definitions and rules of interpretation in this clause apply in this agreement.

Business: technology for and operating a business involving cross border transactions, foreign exchange conversions, streaming of FX API prices, remittances, and stablecoin/cryptocurrencies acceptance, trading, execution, settlement, and liquidity management.

Confidential Information: has the meaning given in 2.1.

Group: in relation to a company (wherever incorporated), that company, any company of which it is a Subsidiary from time to time (its holding company) and any other Subsidiaries from time to time of that company or its holding company. Each company in a Group is a member of the Group.

Permitted Purpose: considering, evaluating, negotiating or advancing the Proposed Business Relationship.

Permitted Recipient: any person referred to in 4.1 to whom Confidential Information is disclosed to.

Proposed Business Relationship: the proposed business relationship between Mal or a member of its Group with SwiftX and its partners.

Subsidiary: in relation to a company wherever incorporated (a holding company), any company in which the holding company (or persons acting on its or their behalf) directly or indirectly holds or controls either: (a) a majority of the voting rights exercisable at shareholder meetings of that company; or (b) the right to appoint or remove a majority of its board of directors, and any company which is a Subsidiary of another company is also a Subsidiary of that company's holding company.

Unless the context otherwise requires, words in the singular shall include the plural and the plural shall include the singular.

A reference to a Party shall include that Party's successors and Permitted Recipients.

Any words following the terms including, include, in particular, for example, or any similar expression shall be interpreted as illustrative and shall not limit the sense of the words preceding those terms.

Any obligation on a Party not to do something includes an obligation not to allow that thing to be done.

2. CONFIDENTIAL INFORMATION

2.1 Confidential Information means all confidential or proprietary information (however recorded or preserved) that is disclosed or made available (in any form or medium), directly or indirectly, by a Party (or any member of its Group) to the other Party (or any member of its Group) (or any of their respective employees, officers, agents or advisers) whether before, on or after the date of this Agreement, in connection with the Proposed Business Relationship, including:

- (a) all confidential or proprietary information relating to its Business, the affairs, financial projections, business plan, strategy, intellectual property, ideas, know how, plans, processes, products, intentions or market opportunities of the disclosing Party;
- (b) the know-how, designs, trade secrets, technical information or software in connection with the Business;
- (c) any information about a Party's partners including their respective names and other details that would identify them;
- (d) any information provided during or in connection with the Demonstration or Integration;
- (e) any other information that is identified as being of a confidential or proprietary nature or which a Party, acting reasonably, would understand to be of a confidential or proprietary nature; and
- (f) any findings, data or analysis derived from such information,

but excluding any information referred to in 2.2.

2.2 Information is not Confidential Information if:

- (a) it is, or becomes, generally available to the public other than as a direct or indirect result of the information being disclosed by the receiving Party or any member of its Group or any other person in breach of this agreement;

- (b) the receiving Party can prove to the reasonable satisfaction of the disclosing Party that it received the information from a source that is not connected with the disclosing Party and that such source was not under any obligation of confidence in respect of that information;
- (c) the receiving Party can establish to the reasonable satisfaction of the other Party that the information was lawfully in its possession before it was disclosed by the disclosing Party (or on its behalf) and the receiving Party was not under any obligation of confidence in respect of that information; or
- (d) the Parties agree in writing that the information is not confidential.

3. RECEIVING PARTY'S OBLIGATIONS

In consideration for the disclosing Party agreeing, conditional upon the entry into this agreement, to make Confidential Information available to the receiving Party, the receiving Party acknowledges that all Confidential Information is confidential and undertakes to the disclosing Party that it will (and will procure that each member of its Group will):

- (a) keep the Confidential Information secret and confidential;
- (b) not use or exploit the Confidential Information in any way, except for the Permitted Purpose;
- (c) ensure that all Confidential Information is kept in a secure place and apply the same security measures and degree of care to the Confidential Information as it applies to its own confidential information;
- (d) not directly or indirectly disclose or otherwise make available any Confidential Information in whole or in part to any person, except as expressly permitted by, and in accordance with, the terms of this agreement;
- (e) not make any copies, except as expressly permitted by, and in accordance with, the terms of this agreement; and
- (f) inform the disclosing Party promptly on becoming aware, or suspecting, that Confidential Information has been disclosed to, or otherwise obtained by, an unauthorised third party.

4. PERMITTED DISCLOSURE

4.1 Provided it complies with its obligations under 4.2, receiving Party may disclose Confidential Information to:

- (a) its officers or employees (or those of its Group) that need to know the relevant Confidential Information for the Permitted Purpose; and
- (b) the professional advisers or consultants engaged to advise the receiving Party (or any member of its Group) in connection with the Proposed Business Relationship

(the parties referred to in 4.1(a) and (b) are each a **Permitted Recipient**); provided that any Permitted Recipient shall be subject to confidentiality obligations with respect thereto by law or by contract.

4.2 Where Confidential Information is disclosed to a party Permitted Recipient, the receiving Party shall:

- (a) inform the Permitted Recipient, before or at the same time the Confidential Information is disclosed, of the confidential nature of the Confidential Information; and
- (b) procure that the Permitted Recipient shall, in relation to any Confidential Information disclosed to it, comply with this agreement as if it were the receiving Party.

5. MANDATORY DISCLOSURE

5.1 Subject to the provisions of this clause 5, receiving Party may disclose Confidential Information to the minimum extent required by:

- (a) an order of any court of competent jurisdiction or any regulatory, judicial, governmental or similar body, or any taxation authority of competent jurisdiction; or
- (b) the laws or regulations of any country to which the affairs of the receiving Party (or any member of its Group) are subject.

5.2 Before receiving Party discloses any information under 5.1, receiving Party shall (to the extent permitted by law) use all reasonable endeavours to:

- (a) inform the disclosing Party of the full circumstances of the required disclosure and the Confidential Information that must be disclosed; and
- (b) take all such steps as may be reasonable and practicable in the circumstances to agree the contents of the required disclosure with the disclosing Party before it is made.

6. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

6.1 If discussions in relation to the Proposed Business Relationship cease, or disclosing Party so requests at any time by notice in writing to the receiving Party, the receiving Party shall immediately:

- (a) return to the disclosing Party, destroy or permanently erase (including to the extent legally and technically practicable, from its computer(s) and communications systems and any other devices used by the receiving Party or from systems and data storage services provided by third parties) all documents and materials and any other Confidential Information which is stored in electronic form or otherwise containing, reflecting, incorporating or based on any Confidential Information that have been supplied to, or generated by, the receiving Party or any Permitted Recipient, including all copies;
- (b) procure that each Permitted Recipient takes the steps referred to in clause 6.1(a) in relation to all Confidential Information received by it and/or in their possession; and
- (c) confirm in writing to the disclosing Party that it has complied with its obligations under this clause 6.1.

6.2 Nothing in clause 6.1 shall require the receiving Party to return, destroy or permanently erase (or procure the return, destruction or permanent deletion of) any documents or materials containing, reflecting, incorporating, or based on Confidential Information that or any Permitted Recipient is required to retain by applicable law, or to satisfy the requirements of any regulatory authority or body of competent jurisdiction. The provisions of this agreement shall continue to apply to any documents and materials retained by the receiving Party or any Permitted Recipient pursuant to this clause 6.2.

proportionate to the loss envisaged by the non-breaching Party in the event of a breach of this clause.

7. INDEMNITY

Each Party shall (in addition to, and without affecting, any other rights or remedies the other Party may have) indemnify, keep indemnified and hold the other Party harmless in proportion to its degree of fault from direct damages arising out of or in connection with any breach or non-performance of any of the provisions under this agreement provided that such damages are established in a final court judgment.

8. DURATION

This agreement shall terminate two years from the date of this Agreement or earlier if superseded by a definitive agreement with respect to the Proposed Business Relationship.

9. ASSIGNMENT AND WAIVER

9.1 Neither party shall assign, transfer or deal in any other manner with any or all of its rights and obligations under this Agreement.

9.2 A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not waive that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy.

10. NOTICES

A notice given to a Party under or in connection with this Agreement shall be in writing and in English and shall be sent to the other Party by courier to the address set out in the Preamble, or as may be revised by a Party by written notice to the other Party, or by email to

SwiftX

For the attention of: Mr Mirnas Brescic

Title: Founder & CEO

Email: mirnas@saturnx.money

Mal

For the attention of: Angel Wesley

Title: CLO

Email: angel.wesley@mal.ai

11. RIGHTS AND REMEDIES

Except as expressly provided in this Agreement, the rights and remedies provided under this Agreement are in addition to, and not exclusive of, any rights or remedies provided by law.

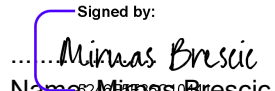
12. GOVERNING LAW AND JURISDICTION

12.1 This Agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

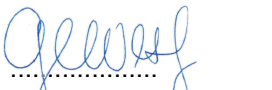
12.2 Each Party irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation.

This Agreement has been entered into on the date it is signed by both Parties.

Signed by the authorised signatory of **SWIFTX DLT Pay LTD.**

Signed by:
.....
Name: Minaas Bresic
Title: Founder & CEO

Signed by the authorised signatory of **Mal Digital Ltd**


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Name: Angel Wesley
Title: CLO